

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                   |                                     |                                            |                                                        |                                               |                                 |
|---------------------------------------------------|-------------------------------------|--------------------------------------------|--------------------------------------------------------|-----------------------------------------------|---------------------------------|
| Investigator:<br>Amanda Harouche                  | Team:<br>Squad #16                  | CCRB Case #:<br>201507774                  | <input type="checkbox"/> Force                         | <input checked="" type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                   |                                     |                                            | <input checked="" type="checkbox"/> Abuse              | <input type="checkbox"/> O.L.                 | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Friday, 09/04/2015 6:01 AM    | Location of Incident:<br>§ 87(2)(b) | 18 Mo. SOL<br>3/4/2017                     | Precinct:<br>60                                        |                                               |                                 |
| Date/Time CV Reported<br>Sat, 09/12/2015 11:10 PM | CV Reported At:<br>CCRB             | How CV Reported:<br>Call Processing System | Date/Time Received at CCRB<br>Sat, 09/12/2015 11:10 PM |                                               |                                 |

| Complainant/Victim | Type       | Home Address |
|--------------------|------------|--------------|
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |

| Witness(es) | Home Address |
|-------------|--------------|
| § 87(2)(b)  | § 87(2)(b)   |
| § 87(2)(b)  | § 87(2)(b)   |

| Subject Officer(s)     | Shield | TaxID  | Command |
|------------------------|--------|--------|---------|
| 1. DT3 Essence Jackson | 02268  | 938703 | NARCBBS |
| 2. DT3 Humberto Kibel  | 02547  | 942004 | NARCBBS |

| Witness Officer(s)        | Shield No | Tax No | Cmd Name |
|---------------------------|-----------|--------|----------|
| 1. CPT Jeanmarie Finnerty | 00000     | 915717 | NARCBBS  |
| 2. SGT John Espey         | 03203     | 915674 | NARCBBS  |
| 3. POM Jason Reynolds     | 15113     | 937367 | NARCBBS  |
| 4. DT3 John Fernandez     | 00175     | 930138 | NARCBBS  |
| 5. DT3 David Marconi      | 6405      | 940420 | NARCBBS  |
| 6. DT3 Mike Civil         | 02114     | 935092 | NARCBBS  |
| 7. DT3 John Rivera        | 00452     | 932207 | NARCBBS  |
| 8. POM Eddie Martins      | 05731     | 942139 | NARCBBS  |
| 9. DT3 Isaac Shannon      | 03188     | 927511 | NARCBBS  |
| 10. DT2 Robert Negron     | 04986     | 927265 | NARCBBS  |
| 11. DT3 Florin Kuka       | 03047     | 936047 | NARCBBS  |

| Officer(s)              | Allegation                                                                  | Investigator Recommendation      |
|-------------------------|-----------------------------------------------------------------------------|----------------------------------|
| A . DT3 Essence Jackson | Abuse: Det. Essence Jackson entered and searched § 87(2)(b) in Brooklyn.    | A . Exonerated                   |
| B . DT3 Humberto Kibel  | Discourtesy: Det. Humberto Kibel spoke discourteously to § 87(2)(b)         | B . Unsubstantiated              |
| C . DT3 Humberto Kibel  | Discourtesy: Det. Humberto Kibel acted discourteously toward § 87(2)(b)     | C . Unsubstantiated              |
| D . DT3 Essence Jackson | Abuse: Det. Essence Jackson failed to show the search warrant to § 87(2)(b) | D . Unsubstantiated              |
| E . DT3 Essence Jackson | Abuse: Det. Essence Jackson failed to show the search warrant to § 87(2)(b) | E . Alleged Victim Uncooperative |

### Case Summary

On September 4, 2015, around 6:01 a.m., officers from Narcotics Borough Brooklyn South executed a search warrant obtained by Det. Essence Jackson for § 87(2)(b) § 87(2)(b) and § 87(2)(b) § 87(2)(b) were inside of the apartment at the time. When officers entered the apartment, § 87(2)(b) and § 87(2)(b) had been sleeping and § 87(2)(b) was only wearing a robe. § 87(2)(b) complained of not being dressed multiple times and Det. Humberto Kibel allegedly told her “I don’t give a fuck” (**Allegation B**) and “I don’t give a fuck. You got an ugly body anyway” while throwing a pillow at her (**within Allegation B and Allegation C**). § 87(2)(b) and § 87(2)(b) then asked to see a search warrant but were allegedly never shown the warrant (**Allegation D and Allegation E**). Officers recovered crack cocaine, a pipe with crack cocaine residue, a metal scraper with crack cocaine residue, \$200 cash, and a BB gun were recovered from the apartment and vouchered as arrest evidence (18 Board Review). § 87(2)(b) § 87(2)(b) and § 87(2)(b) were arrested as a result of this incident. § 87(2)(b) was not arrested because she was a frail elderly woman.

There is no video footage for this incident.

§ 87(2)(g) [REDACTED]

### Mediation, Civil and Criminal Histories

- This case was not suitable for mediation § 87(2)(g) [REDACTED].
- As of December 28, 2015, a notice of claim inquiry is pending with the New York City Comptroller’s office.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]

### Civilian and Officer CCRB Histories

- § 87(2)(b) has had seven other CCRB complaints. § 87(2)(b) [REDACTED]
- This is the only complaint involving § 87(2)(b) (Board Review 21).
- Det. Jackson has been a member of the service for 10 years and has had 14 total cases with 39 allegations against him, none of which have been substantiated. § 87(2)(g) [REDACTED].

- Det. Kibel has been a member of the service for nine years and has had a total of eight cases with 11 allegations against him, none of which have been substantiated. § 87(2)(g)

### **Findings and Recommendations**

#### **Explanation of Subject Officer Identification**

- § 87(2)(g)
  - § 87(2)(b) indicated that the subject officer of discourteous statement and discourteous action was one of the officers who went into her bedroom, and described him as a white male with a gold badge on his waistband (04 Board Review). Det. Kibel stated that he entered a bedroom but did not remember who he encountered in the bedroom and did not remember interacting with § 87(2)(b) (16 Board Review). Det. Jackson stated that both he and Det. Kibel entered the bedroom and encountered § 87(2)(b) and her mother and that they escorted both of them out of the bedroom and into the living room (15 Board Review). § 87(2)(e)
- Det. Jackson is a black male and therefore could not be the subject officer of the discourtesies. Although Det. Kibel is a Hispanic male, he has a light skin complexion and could be mistaken for a white male. Since Det. Kibel is a detective, he has a gold badge and stated that he wears it on his waistband. § 87(2)(g)

#### **Allegations not pleaded**

- § 87(2)(g)
- § 87(2)(g)

#### **Allegation A: Det. Essence Jackson entered and searched § 87(2)(b) in Brooklyn.**

It is undisputed that officers entered and searched § 87(2)(b), in Brooklyn pursuant to a valid search warrant obtained by Det. Essence Jackson.

Police documentation confirms that the search warrant was obtained for the location seven days prior to the execution of the warrant and that the warrant obtained was valid for 10 days (06 Board Review).

§ 87(2)(g)

it is recommended that **Allegation A** be closed as **exonerated**.

**Allegation B: Det. Humberto Kibel spoke discourteously to** § 87(2)(b)

**Allegation C: Det. Humberto Kibel acted discourteously toward** § 87(2)(b)

§ 87(2)(g)

In her sworn statement, § 87(2)(b) alleged that when she woke up in her bedroom and she told the officers that she did not have any clothes on, since she was only wearing a robe at the time, an officer, identified by the investigation as Det. Kibel, told her, “I don’t give a fuck.” She also alleged that when she was sitting in the living room with § 87(2)(b) and § 87(2)(b) she told Det. Kibel that she did not have any clothes on again and Det. Kibel responded, “I don’t give a fuck. You got an ugly body anyway” while throwing a pillow at her. She did not allege these discourteous statements or discourteous actions in any other statement provided to the CCRB; in her DiRad message, § 87(2)(b) only alleged an unspecified officer said, “Shut the fuck up” (01 Board Review) and in her two follow up calls, § 87(2)(b) did not allege any discourtesies (03 Board Review, 04 Board Review).

§ 87(2)(g)

In her phone statement, § 87(2)(b) did not allege that officers used any discourtesies towards § 87(2)(b) and did not say that officers threw a pillow at her and she was uncooperative during her sworn statement and therefore could not be questioned about it (08 Board Review, 09 Board Review). § 87(2)(b) did not remember the incident enough to give a detailed phone statement of what happened (07 Board Review).

Det. Kibel did not remember interacting with any of the individuals in the apartment, including § 87(2)(b). Det. Kibel did not remember anyone in the apartment only having a robe on. Det. Kibel denied that he told § 87(2)(b) “I don’t give a fuck,” threw a pillow at her, or told her she had an ugly body. Det. Kibel did not hear any other officer in the apartment tell § 87(2)(b) “I don’t give a fuck,” throw a pillow at her, or tell her that she had an ugly body (16 Board Review).

Det. Jackson, Captain Jean Marie Finnerty, Sgt. John Espey and PO Eddie Martins did not hear any officers tell § 87(2)(b) “I don’t give a fuck” or throw a pillow at § 87(2)(b) (15 Board Review, 10 Board Review, 11 Board Review, 14 Board Review). Det. Marconi stood in the hallway and did not enter the apartment at any point; therefore he did not hear or see anything that went on in the apartment (12 Board Review).

§ 87(2)(g)

Therefore, it is recommended that **Allegations B and C** be closed as **unsubstantiated**.

**Allegation D: Abuse of Authority – Det. Essence Jackson failed to show the search warrant to § 87(2)(b)**

**Allegation E: Abuse of Authority – Det. Essence Jackson failed to show the search warrant to § 87(2)(b)**

§ 87(2)(g)

§ 87(2)(b) alleged that she asked all of the officers where the search warrant was but that officers ignored her; she was not shown any search warrant. § 87(2)(b) did not say that § 87(2)(b) asked to see a search warrant (04 Board Review). In her phone statement, § 87(2)(b) alleged that only she asked to see a search warrant and that she was not shown a search warrant; she did not say that § 87(2)(b) asked to see a search warrant (08 Board Review). § 87(2)(b) was uncooperative with the CCRB and walked out of her interview before the civilian interview script was completed and before a sworn statement and more details could be obtained (09 Board Review). In his phone statement, § 87(2)(b) stated that § 87(2)(b) asked for a search warrant but was never shown one; he did not say that § 87(2)(b) asked officers to see a search warrant (13 Board Review). § 87(2)(b) did not remember the incident enough to give a detailed phone statement of what happened (07 Board Review).

Det. Jackson stated § 87(2)(b) was yelling and generally asking to see a search warrant when the officers were inside of the apartment. Det. Jackson stated that he showed § 87(2)(b) the search warrant and then showed § 87(2)(b) the search warrant even though § 87(2)(b) was not asking to see the search warrant (15 Board Review). Sgt. John Espey corroborated this (11 Board Review).

Det. Kibel did not remember anyone in the apartment asking to see a search warrant and did not see an officer show a search a search warrant to anyone in the apartment (16 Board Review). PO Eddie Martins did not hear anyone in the apartment asking to see a search warrant and did not see an officer show anyone in the apartment a search warrant (14 Board Review).

Captain Jean MarieFinnerty stated that she most likely left the apartment before any warrant was shown and did not think she was present when a warrant was shown to anyone in the apartment (10 Board Review). Det. David Marconi did not enter the apartment at any point and did not hear or see anything that went on in the apartment (12 Board Review).

§ 87(2)(g)

therefore, it is recommended that **Allegation D** be closed as **unsubstantiated**. § 87(2)(g)

\_\_\_\_\_ it is recommended that  
**Allegation E** be closed as **victim uncooperative**.

\_\_\_\_\_  
Squad: \_\_\_\_\_

Investigator: \_\_\_\_\_  
Signature Print Date

Pod Leader: \_\_\_\_\_  
Title/Signature Print Date

Attorney: \_\_\_\_\_  
Title/Signature Print Date